U.S. Department of Transportation
Federal Highway Administration

Eastern Federal Lands Highway Division
NEPA Categorical Exclusion Form

Project Number: NY ERFO FW WARI 2019-1(1) **Date:** 12/17/2025

Project Name: Wallkill River National Wildlife Refuge Trail Repairs

Location: Wallkill National Wildlife Refuge
Warwick Township, Orange County, New York

CE Category 23 CFR 771.117(c)(23): Federally funded projects (i) That receive less than $5,000,000 [now $7,139,157 as adjusted for inflation] (ii) With a total estimated cost of not more than $30,000,000 [now $41,604,249 as adjusted for inflation...]

See 23 CFR 771.117 for full description of CE categories, including additional requirements when applying (c)26-28.

CATEGORICAL EXCLUSION REVISION #1- This updated documentation replaces the 8/4/2023 version. This version provides updated project descriptions, mitigations, and consultations.

Project Description

The Eastern Federal Lands Highway Division of the Federal Highway Administration (FHWA), in cooperation with the U.S. Fish and Wildlife Service (USFWS), is proposing to repair portions of the Winding Waters Trail and Liberty Loop Trail within the Wallkill River National Wildlife Refuge (Refuge) located off State Line Road in Warwick, Orange County, New York. The Refuge was impacted by back-to-back heavy rain events in late spring 2019, causing widespread flooding in the area. Multiple trails within the Refuge were inundated with flood waters for multiple days, resulting in lost trail surfacing material while portions of the Winding Waters Trail eroded into the Wallkill River creating a safety hazard for trail users.

Proposed repairs along the Winding Waters Trail would include streambank stabilization along approximately 500 linear feet of the Wallkill River where segments of the Winding Waters Trail embankment eroded into the river. This work would involve installation of vegetated and non-vegetated riprap revetments, minor trail realignment, rehabilitating and resurfacing impacted portions of the trail surface, and turf reestablishment. Repairs along the Liberty Loop Trail would involve deep patch repairs of trail side slopes, installation of a cellular confinement system, repair and rehabilitation of the trail surface, and turf re-establishment.

Additional trail repair work would include installation of temporary erosion and sediment control measures, selective vegetation clearing and grubbing, tree replanting, and other miscellaneous trail maintenance activities.

Environmental Commitments and Mitigation Measures

Erosion Control Measures:

- The Contractor will be required to prepare and implement a Storm Water Pollution Prevention Plan (SWPPP), and a Spill Prevention, Control, and Countermeasure Plan (SPCC) as required in the Standard Specifications (FP-14).
- Erosion and sediment control measures including sediment barriers, diversion berms, and turbidity curtains will be used as necessary.
- Erosion and sediment control devices will be routinely inspected by qualified personnel to ensure they are functioning properly.
- Best Management Practices such as the watering of exposed soil will be implemented to ensure construction dust does not enter adjacent wetlands.

Wildlife/Wildlife Habitat

- To protect ESA-listed bat species, no trees larger than 3-inch DBH will be cut between April 1 and November 15. If trees must be cleared within this period, presence/absence surveys shall be conducted by a qualified biologist prior to tree removal.
- Per coordination with NYDEC, trees removed along the Winding Waters Trail will be replanted at a 1:1 ratio to maintain wildlife habitat corridors.
- Vegetation clearing is not permitted from May 25 – August 5 to avoid take of species protected under the Migratory Bird Treaty Act. If vegetation must be cleared within this window, a qualified biologist must conduct migratory bird nesting surveys prior to the removal of vegetation. Nesting surveys must be conducted within 5 days of commencement of disturbance at the site. If active nests are found, the Contractor must maintain a species appropriate buffer from the nest until the young have fledged.
- Wallkill River National Wildlife Refuge staff will inspect the project site prior to ground disturbing activities on a routine basis to confirm no bog turtles are present in or surrounding the project area. Work cannot commence until turtles have been relocated by a qualified biologist.
- Care will be taken not to disturb any wildlife species found nesting, estivating, or otherwise living in or immediately adjacent to the worksites.

General Mitigation Measures:

- All construction equipment entering the worksite must be free of any vegetation and/or vegetation parts (seeds, stems, etc.) to avoid introduction of invasive species.

- No equipment is authorized enter wetland areas adjacent to the Liberty Loop Trail.
- The Contractor will make every reasonable effort to minimize construction noise through abatement measures such as proper maintenance of construction equipment and use of modern equipment with better engine insulation and mufflers.

Summary of Section 7 of the Endangered Species Act Compliance
The USFWS Information for Planning and Consultation (IPaC) website was used to obtain an official species list on June 2, 2023, and updated in September and December 2025. Four listed species and two proposed species were identified as having the potential to occur in the project area. USFWS prepared an Intra-Service Section 7 Biological Evaluation (BE) for the proposed project and determined that the proposed action would have *no effect* on the Small Whorled Pogonia and Monarch Butterfly, and *may affect, but is not likely to adversely affect* the Northern long-eared bat, Indiana Bat, Tricolored Bat and Bog Turtle. Additionally, the New Jersey Ecological Field Office recommended the BE also address the Eastern Black rail (*Laterallus jamaicensis*) as they had data that suggested the species may utilize modified wetlands adjacent to the Liberty Loop Trail. In the BE, USFWS determined the proposed action *may affect, but is not likely to adversely affect* the Eastern Black rail.

The New York Ecological Field Office concurred with the determinations made in the BE on December 10, 2025. Section 7 compliance will be revisited prior to project construction to ensure no changes have been made to the status of listed, proposed, or candidate species.

Summary of Section 106 of the National Historic Preservation Act Compliance
Coordination with the USFWS Region 5 Historic Preservation Officer, and a review of the New York State Cultural Resources Information System (CRIS), found that no archaeological or historic resources are known to occur within the project Areas of Potential Effect. On May 23, 2023, FHWA requested concurrence from the New York State Historic Preservation Office that the proposed project would have no effect on historic properties. In a letter dated June 1, 2023, the Deputy State Historic Preservation Officer concurred with FHWA's finding that "no historic properties, including archaeological and/or historic resources, would be affected by the proposed undertaking."

Additional Agency Coordination and Compliance
The Refuge will coordinate with the National Park Service regarding detours for uses of the Appalachian National Scenic Trail during project construction. AT users currently utilize the southern and western loop of the Liberty Loop Trail. During project construction, detour signs will be erected to direct AT users to use the eastern side of the Liberty Loop Trial and continue to Oil City Road.

Categorical Exclusion Recommendation:
On the basis of the environmental impact information in the statutory compliance file, with which I am familiar, I believe the project should be categorically excluded from further NEPA analysis.

KIMBERLY DIANE CAMPO-ALLEN
Digitally signed by KIMBERLY DIANE CAMPO-ALLEN
Date: 2025.12.17 13:03:49 -05'00'

Kim Campo-Allen — Date
Environmental Protection Specialist
Eastern Federal Lands Highway Division
Federal Highway Administration

Categorical Exclusion Determination:
On the basis of the environmental impact information in the statutory compliance file, with which I am familiar, I am categorically excluding the described project from further NEPA analysis. The project meets the 23 CFR 771.117(a) definition of a categorical exclusion. No unusual circumstances per 23 CFR 771.117(b) apply.

KEVIN S ROSE
Digitally signed by KEVIN S ROSE
Date: 2025.12.17 13:28:29 -05'00'

Kevin S. Rose — Date
Environmental Team Leader
Eastern Federal Lands Highway Division
Federal Highway Administration

Appendix A: Environmental Checklist

Section 7 of the Endangered Species Act:
• Are Federally-listed species potentially present in the study area? ☒Yes, see Notes[i] ☐No If Yes, effects determination: ☒No Effect ☒May Affect, Not Likely to Adversely Affect ☐May Affect, Likely to Adversely Affect
Section 106 of the National Historic Preservation Act:
• Are historic properties known to be present in the study area? ☐Yes ☒No If Yes, will they be impacted by the project? ☐Yes ☐No • Will previously undisturbed ground be disturbed? ☐Yes ☒No • Effects determination: ☒No Historic Properties Affected ☐No Adverse Effect ☐Adverse Effect, MOA Executed • Was tribal consultation completed? ☐Yes ☒No
Water and Wetlands:
• Section 404 of the Clean Water Act Are impacts to Waters of the US anticipated? ☒Yes ☐No If Yes, approval anticipated: ☒Nationwide Permit (NWP) ☐Regional General Permit ☐Individual Permit • Section 401 of the Clean Water Act ☒NWP certified by State ☐Individual Certification • Section 402 of the Clean Water Act (National Pollutant Discharge Elimination System) Will the land disturbance threshold likely be exceeded to require a permit and SWPPP? ☒Yes ☐ No • Is post-construction stormwater management review/approval anticipated? ☐Yes ☒No • ☒Project is consistent with Executive Order 11990, Protection of Wetlands
Floodplains:
• Is the project in a FEMA floodplain? ☒Yes ☐No ☐ Floodplain not mapped • ☒ Project is consistent with Executive Order 11988, Floodplain Management
Section 4(f) of the USDOT Act:
• Does the project meet the Section 4(f) exemption for Federal lands transportation facilities under Section 1119(c)(2) of MAP-21, 23 U.S.C. 138(a)? ☒Yes ☐No • Is there a use of a Section 4(f) property in the study area? ☐Yes ☒No If Yes, De Minimis Finding:☐ Programmatic:☐ Individual 4(f): ☐
Section 6(f) of the Land and Water Conservation Fund:

• Was the property purchased with grant funds from the Land and Water Conservation Fund? ☐Yes ☒No • If Yes, was documentation of approval from National Park Service Director received for the conversion or replacement of 6(f) property? ☐Yes ☐No
Coastal Zone Management Act of 1972:
• Is the project in a Coastal Zone? ☐Yes ☒No • If yes, will a Federal Consistency Review be completed? ☐Yes ☐No
Right of Way:
• Is the project completely within the transportation facility's right-of-way? ☒Yes ☐No • If no, will the project require relocations or easements? ☐Yes ☐No
Hazardous Waste and Materials:
• Are hazardous materials or contamination exceeding regulatory thresholds (as set by U.S. EPA, County Environmental Health, etc.) present? ☐Yes ☒No • If Yes, is the nature and extent of the hazardous materials or contamination fully known? ☐Yes ☐No, plan for securing information provided in Notes
Section 7(a) of the Wild and Scenic Rivers Act:
• Are there Wild and Scenic Rivers? ☐Yes ☒No ☐Eligible If Yes, has review by the river-administering agency been completed? ☐Yes ☐No
Clean Air Act:
• Is the project in a non-attainment area? ☐Yes ☒No If Yes, is the project on the Transportation Improvement Program(TIP)/State Implementation Plan(SIP)? ☐ Yes ☐No
Highway Traffic and Construction Noise Regulations:
• ☐ The proposed project is a Type I project (highway on a new location, substantial horizontal or vertical alteration, new through or auxiliary lanes). Noise analysis is required. • ☐ The proposed project is a Type II project (retrofit for noise abatement). • ☒ The proposed project is a Type III project (noise analysis not required). • ☐ Does not apply.
Farmland Protection Policy Act for Highway Projects:
• Does the project displace, require acquisition of, or require an easement from farmland? ☒Yes ☐No
Does the project affect any other resources not listed above? Explain below and list anticipated permits:
Additional anticipated permits: New York State Environmental Quality Review Act approval; New York
State Erosion and Sediment Control (ESC) Plan review and approval; New York Department of Environ-
mental Conservation (NYDEC) Protection of Waters Permit, and NYDEC Freshwater Wetlands Permit.

[i] Federally-listed species per U.S. Fish and Wildlife Service's IPaC: Northern Long-Eared Bat (*Myotis septentrionalis*), Indiana Bat (*Myotis sodalis*), Tricolored Bat (*Perimyotis subflavus*), Bog Turtle (*Glyptemys muhlenbergii*), Small Whorled Pagonia (*Isotria medeoloides*), Monarch Butterfly (*Danaus plexippus*).

ESA Section 7 Concurrence Documentation

INTRA-SERVICE SECTION 7 BIOLOGICAL EVALUATION FORM

Project Name: FHWS ERFO Liberty Loop Trail **Originating Person:** Anna Harris
Township: Sussex, NJ and Pine Island, NY **Telephone Number:** 973-417-9542
County: Sussex, NJ and Orange County, NY **Date:** 6/1/2023

Distance to nearest town: 5 miles to nearest town of Sussex, NJ

I. Region: 5

II. Service Activity (Program): Wallkill River National Wildlife Refuge

III. Pertinent Species and Habitat:

A. Listed species and/or their critical habitat within the action area:

Indiana Bat (*Myotis sodalis*, endangered)
Northern Long-eared Bat (*Myotis septentrionalis*, endangered)
Eastern black rail (*Laterallus jamaicensis ssp. jamaicensis*, threatened)
Bog Turtle (*Glyptemys muhlenbergii*, threatened)

B. Proposed species and/or proposed critical habitat within the action area:

Tricolored Bat (*Perimyotis subflavus*, proposed endangered)

C. Candidate species within the action area:

Monarch Butterfly (*Danaus plexippus*, candidate)

D. Include species/habitat occurrences on a map.

Map(s) attached. See IPaC document.

IV. Description of proposed action (attach additional pages as needed):

This project is for trail improvements on the Liberty Loop Trail (Figure 1) and construction will involve deep patch repairs of the trail embankments, installation of cellular confinement system (CCS), and turf re-establishment. There will be an excavation of 10 inches of the existing trail surface to facilitate installation of the CCS.

The pre-and post-construction trail elevation will be the same. The construction equipment will be staged offsite and will use existing parking areas on the trail system. All construction and trail maintenance will occur during daylight hours. There is no tree clearing associated with this trail resiliency project.

V. Determination of effects:

A. Explanation of effects of the action on species and critical habitats in items III. A, B, and C (attach additional pages as needed):

Bog turtle – The project action area is approximately 2.5 miles from the nearest bog turtle occurrence. The project area consists of modified wetlands, which are not preferred by bog turtle. The surrounding wetlands are primarily forested with small patches of emergent wetland that will not be impacted by the proposed project activities. Wallkill Refuge frequently surveys for bog turtles and has no record of a bog turtle on the Liberty Loop trail or surrounding areas. Wallkill Refuge anticipates monitoring the construction area preconstruction to confirm no bog turtles will be present in or surrounding the action area during the construction project. Based on the lack of suitable bog turtle within the project action area and anticipated monitoring, no adverse effects are anticipated for bog turtle.

Indiana bat, northern long-eared bat, and tricolored bat- The proposed project does not require tree removal; therefore, no effects to Indiana bat, northern long-eared bat, or tricolored bat summer roosting habitat or commuting areas are anticipated.

Eastern black rail- Eastern black rail occurrences have been documented within close proximity to the Liberty Loop trail. Vegetation within the project limits of disturbance consists primarily of upland species that do not provide preferred nesting habitat for the eastern black rail. Additionally, repairs to the Liberty Loop Trail will not require the placement of fill in wetlands and no equipment would be allowed to enter wetlands. All work would occur on the existing trail surface and embankment. No changes in wetland hydrology would result from the trail repairs as no changes in trail surface elevation would occur and the project does not involve work to the existing water control structures at Liberty Loop. Additionally, temporary erosion and sediment (E&S) control devices would be installed prior to ground disturbing activities. E&S measures would include installation of silt fence and watering of exposed soils to prevent dust from entering adjacent wetlands. Mitigation measures to prevent the spread of invasive species within the Refuge would include inspection of construction equipment prior to entry into the project area. Vehicles and equipment would be inspected for any vegetation and/or vegetation parts (seeds, stems, etc.) to avoid introduction of invasive species. Based on the lack of disturbance to wetlands and the implementation of E&S and mitigation measures, no adverse effects are anticipated for eastern black rail.

Construction on the trail improvement project will occur during the summer and fall of 2024. Given the narrow width of the Liberty Loop trail system, the construction

equipment will be smaller than most traditional equipment. This will lessen the impacts from noise during the daylight hours for any nesting or migratory eastern Black rail.

Monarch butterfly- No mowing/removal of milkweed is proposed. Based on lack of impacts to suitable monarch butterfly habitat, no effects to monarch butterfly are anticipated.

B. Explanation of actions to be implemented to reduce adverse effects:

The Service anticipates that the construction project program will not likely adversely affect or have no effect on these species. Rather, Wallkill Refuge expects to see a positive habitat response by improving the trail network. This portion of the refuge has been severely damaged due to high water events during storms or hurricane events. The construction project will create a more climate resilient trail system at the Liberty Loop location.

As mentioned previously, Wallkill Refuge anticipates monitoring the construction area preconstruction to confirm no bog turtles will be present in or surrounding the action area during the construction project. If bog turtle is found before or during construction, either the New Jersey Field Office or the New Jersey Department of Environmental Protection will be contacted promptly for further guidance.

To reduce potential adverse effects to eastern black rail, a qualified monitor will perform routine inspection to monitor that erosion and sediment controls are functioning properly, invasive controls are being implemented, and there are no intrusions into the modified wetlands. The contractor will also reduce noise emissions as much as practicable, including use of modern equipment with better engine insulation and mufflers.

VI. Effect determination and response requested: [* = optional]

A. Listed species/designated critical habitat:

Determination	**Response requested**
no effect/no adverse modification (species: Indiana bat, northern long-eared bat)	__X_ *Concurrence
may affect, but is not likely to adversely affect species/adversely modify critical habitat (species: bog turtle, eastern black rail)	__X_ *Concurrence
may affect, and is likely to adversely affect species/adversely modify critical habitat	

(species:_____) ____ Formal Consultation

B. Proposed species/proposed critical habitat:

Determination	**Response requested**
No effect on proposed species/no adverse modification of proposed critical habitat (species: tricolored bat)	__X__ *Concurrence
Is likely to jeopardize proposed species/ adversely modify proposed critical habitat (species: None)	_____ Conference

C. Candidate species

Determination	**Response requested**
No effect on candidate species (species: monarch butterfly)	__X__ *Concurrence
Is likely to jeopardize candidate species (species:_____)	_____ Conference

____Anna Harris_____ **___6/1/2023_____**
Project Biologist (Requestor) Date

VII. Reviewing ESFO Evaluation:

A. Concurrence_____X_____ Nonconcurrence_____

B. Formal consultation required_____

C. Conference required_____

D. Informal conference required_____

E. Remarks (attach additional pages as needed):

REBECCA KLEE Digitally signed by REBECCA KLEE Date: 2023.08.03 10:10:17 -04'00'
_____ _____
Endangered Species Biologist (Reviewer), New Jersey Field Office Date

ROSS CONOVER Digitally signed by ROSS CONOVER Date: 2023.08.03 10:18:33 -04'00'
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Supervisor, New Jersey Field Office Date

INTRA-SERVICE SECTION 7 BIOLOGICAL EVALUATION FORM

Project Name: FHWA ERFO Winding Waters Trail **Originating Person:** Anna Bisson
Township: Pine Island, NY **Telephone Number:** 973-417-9542
County: Orange Co, NY **Date:** 9/5/2025

Distance to nearest town: ____8 miles to nearest town of Sussex NJ _____

I. Region: 5

II. Service Activity (Program): Wallkill River National Wildlife Refuge

III. Pertinent Species and Habitat:

A. Listed species and/or their critical habitat within the action area:
Indiana Bat, Northern Long-eared Bat, Small Whorled Pogonia and Bog Turtle

B. Proposed species and/or proposed critical habitat within the action area:
Wallkill River NWR uses IPaC to identify threatened and endangered species, including for purposes of this Biological Evaluation. This is done because the IPaC database is the better of the Service's databases for the refuge and may contain the best available information on species presence. Nevertheless, in order to ensure a thorough review, this Biological Evaluation considers all threatened and endangered species identified by both the IPaC and ECOS databases. Note, however, that these databases are updated regularly, approximately every 90 days, and, thus, it is possible that the specific threatened and endangered species identified as present on or near the refuge may change between the finalization of this Biological Evaluation and its publication and/or between finalization and your reading this document. Staff present on the refuge and conducting this evaluation may have the best available information about the presence of fish and wildlife species. Thus, where species are identified by either database, but the refuge has information that the species is not actually present within the "action area," we have explained that as the basis for our determination that any construction related activities will have no effect on the species.

C. Candidate species within the action area:
Monarch Butterfly

D. Include species/habitat occurrences on a map.

IV. Description of proposed action (attach additional pages as needed):

Repairs on the Winding Waters Trail will include streambank stabilization along approximately 600 linear feet of the Wallkill River where portions of the Winding Waters Trail have eroded into the river. This work will involve installation of two segments of riprap revetment, rehabilitating and resurfacing impacted portions of the trail surface, slight realignment of the trail to accommodate installation of the riprap revetments, and turf re-establishment. Repairs on the Liberty Loop Trail will involve deep patch repairs of trail side slopes, installation of a cellular confinement system, repair and rehabilitation of the trail surface, and turf re-establishment. All work would occur within areas previously disturbed by original construction of each trail or immediately adjacent to the existing trail at the Winding Waters trail site.

V. Determination of effects:

A. Explanation of effects of the action on species and critical habitats in items III. A, B, and C (attach additional pages as needed):

Indiana Bat, Northern Long-eared Bat, Tricolored Bat

Bog turtle – Bog turtles can be found throughout the valley in remnant open, wet bogs outside of where the trail construction activities will occur. Summer and fall represent periods of moderate activity for bog turtles, but the likelihood that they would be encountered by construction activity on the Winding Waters trail is extremely low. The refuge frequently surveys for bog turtles and have no record of a bog turtle on the Winding Water trail. The Wallkill Refuge considers the Bog turtle one our focal species and we anticipate monitoring the construction area preconstruction to confirm our hypothesis that no bog turtles will be around the action area during the construction project. We believe this portion of the trail project will not likely adversely impact the threatened Bog turtle.

Indiana bat– The last time Indiana bats were documented on the refuge was the summer of 2010. They hibernate in caves and mines from October to April. The construction activity on the Winding Water trail is expected to occur throughout the summer and fall of 2026. Any disturbance from construction activity is expected to be minimal due to the temporary nature of the work. Approximtely will be 0.25 acres of trees would be removedto facilitate project construction. There will be tree planting in the vicinity of the project as a part of a NY State permit requirement for impacts to bats. The Service anticipates a not likely to adversely affect from construction activities.

Northern long-eared bat – Northern long-eared bats were last documented on the refuge in summer 2013. They hibernate in caves and mines from October to April. Approximately 0.25 acres of trees would be removed to facilitate project construction. The disturbance to Northern long-eared bats is a level of not likely to adversely affect.

Tricolored bat- The refuge does not have current records of tricolored bats. There is approximately 0.25 acres of tree clearing as a part of this construction project. No tree clearing will occur during the active season for Tricolored bats. The Service anticipates a not likely to adversely affect the tricolored bat.

Small whorled pogonia – there is no record of small whorled pogonia according to refuge surveys and the habitat along the existing Winding Water trial is not suitable for the Small whorled pogonia. We anticipate no effect on the Small whorled pogonia.

Eastern Black Rail- The federally threatened Eastern Black rail has been identified in E-bird data in close proximity to the Liberty Loop trail, which is south of the Winding Water trail improvement project. After communication with the national lead and NJ Field Office, the refuge will solicit support from local knowledgeable birders to volunteer to listen and follow the Eastern Black Rail survey protocols to determine presence. This will be ongoing in the months of May and June 2026. The refuge anticipates any new information will help inform future management of the vegetation and freshwater marsh impoundments. Construction on the trail improvement project will occur during the summer and fall of 2026. Given the distance between the Winding Water trail and the Liberty Loop trail system, this portion of the trail improvement project will likely have no impact on Eastern black rail.

B. Explanation of actions to be implemented to reduce adverse effects:

The Service anticipates that the winding waters trail improvement construction project will not likely adversely affect or have no effect on these species. Rather, we expect to see a positive habitat response by improving the trail network. This portion of the refuge has been severely damaged due to high water events during storms or hurricane events. The construction project will create a more climate resilient trail system along the Wallkill River.

VI. Effect determination and response requested: [* = optional]

A. Listed species/designated critical habitat:

Determination	**Response requested**
no effect/no adverse modification (Small Whorled Pogonia)	__X_ *Acknowledgement
may affect, but is not likely to adversely affect species/adversely modify critical habitat (species:__ bog turtle, Indiana bat, northern long-eared bat, Tricolored Bat __)	__X_ Concurrence
may affect, and is likely to adversely affect species/adversely modify critical habitat (species:_____)	____ Formal Consultation

____Anna Bisson_____ **___9/5/2025_____**

Project Biologist (Requestor) Date

VII. Reviewing ESFO Evaluation:

A. Concurrence____X_____ Nonconcurrence_____

B. Formal consultation required_____

C. Conference required_____

D. Informal conference required_____

E. Remarks (attach additional pages as needed): IPaC 2023-0088740

__Tim Sullivan_____12/10/25_____
Endangered Species Biologist (Reviewer), New York Field Office Date

IAN DREW Digitally signed by IAN DREW Date: 2025.12.10 11:53:40 -05'00'
_____ _____
Supervisor, New York Field Office Date

United States Department of the Interior

FISH AND WILDLIFE SERVICE
New York Ecological Services Field Office
3817 Luker Road
Cortland, NY 13045-9385
Phone: (607) 753-9334 Fax: (607) 753-9699
Email Address: fw5es_nyfo@fws.gov

In Reply Refer To: 12/04/2025 21:38:33 UTC
Project Code: 2023-0095640
Project Name: Wallkill River NWR Trail Repairs

Subject: List of threatened and endangered species that may occur in your proposed project location or may be affected by your proposed project

To Whom It May Concern:

The enclosed species list identifies threatened, endangered, proposed and candidate species, as well as proposed and final designated critical habitat, that may occur within the boundary of your proposed project and/or may be affected by your proposed project. The species list fulfills the requirements of the U.S. Fish and Wildlife Service (Service) under section 7(c) of the Endangered Species Act (Act) of 1973, as amended (16 U.S.C. 1531 *et seq.*).

New information based on updated surveys, changes in the abundance and distribution of species, changed habitat conditions, or other factors could change this list. Please feel free to contact us if you need more current information or assistance regarding the potential impacts to federally proposed, listed, and candidate species and federally designated and proposed critical habitat. Please note that under 50 CFR 402.12(e) of the regulations implementing section 7 of the Act, the accuracy of this species list should be verified after 90 days. This verification can be completed formally or informally as desired. The Service recommends that verification be completed by visiting the IPaC website at regular intervals during project planning and implementation for updates to species lists and information. An updated list may be requested through the IPaC system by completing the same process used to receive the enclosed list.

The purpose of the Act is to provide a means whereby threatened and endangered species and the ecosystems upon which they depend may be conserved. Under sections 7(a)(1) and 7(a)(2) of the Act and its implementing regulations (50 CFR 402 *et seq.*), Federal agencies are required to utilize their authorities to carry out programs for the conservation of threatened and endangered species and to determine whether projects may affect threatened and endangered species and/or designated critical habitat.

A Biological Assessment is required for construction projects (or other undertakings having similar physical impacts) that are major Federal actions significantly affecting the quality of the human environment as defined in the National Environmental Policy Act (42 U.S.C. 4332(2)

(c)). For projects other than major construction activities, the Service suggests that a biological evaluation similar to a Biological Assessment be prepared to determine whether the project may affect listed or proposed species and/or designated or proposed critical habitat. Recommended contents of a Biological Assessment are described at 50 CFR 402.12.

If a Federal agency determines, based on the Biological Assessment or biological evaluation, that listed species and/or designated critical habitat may be affected by the proposed project, the agency is required to consult with the Service pursuant to 50 CFR 402. In addition, the Service recommends that candidate species, proposed species and proposed critical habitat be addressed within the consultation. More information on the regulations and procedures for section 7 consultation, including the role of permit or license applicants, can be found in the "Endangered Species Consultation Handbook" at:

https://www.fws.gov/sites/default/files/documents/endangered-species-consultation-handbook.pdf

Migratory Birds: In addition to responsibilities to protect threatened and endangered species under the Endangered Species Act (ESA), there are additional responsibilities under the Migratory Bird Treaty Act (MBTA) and the Bald and Golden Eagle Protection Act (BGEPA) to protect native birds from project-related impacts. Any activity resulting in take of migratory birds, including eagles, is prohibited unless otherwise permitted by the U.S. Fish and Wildlife Service (50 C.F.R. Sec. 10.12 and 16 U.S.C. Sec. 668(a)). For more information regarding these Acts see https://www.fws.gov/program/migratory-bird-permit/what-we-do.

It is the responsibility of the project proponent to comply with these Acts by identifying potential impacts to migratory birds and eagles within applicable NEPA documents (when there is a federal nexus) or a Bird/Eagle Conservation Plan (when there is no federal nexus). Proponents should implement conservation measures to avoid or minimize the production of project-related stressors or minimize the exposure of birds and their resources to the project-related stressors. For more information on avian stressors and recommended conservation measures see https://www.fws.gov/library/collections/threats-birds.

In addition to MBTA and BGEPA, Executive Order 13186: *Responsibilities of Federal Agencies to Protect Migratory Birds*, obligates all Federal agencies that engage in or authorize activities that might affect migratory birds, to minimize those effects and encourage conservation measures that will improve bird populations. Executive Order 13186 provides for the protection of both migratory birds and migratory bird habitat. For information regarding the implementation of Executive Order 13186, please visit https://www.fws.gov/partner/council-conservation-migratory-birds.

We appreciate your concern for threatened and endangered species. The Service encourages Federal agencies to include conservation of threatened and endangered species into their project planning to further the purposes of the Act. **Please include the Consultation Code in the header of this letter with any request for consultation or correspondence about your project that you submit to our office.**

Attachment(s):

- Official Species List

OFFICIAL SPECIES LIST

This list is provided pursuant to Section 7 of the Endangered Species Act, and fulfills the requirement for Federal agencies to "request of the Secretary of the Interior information whether any species which is listed or proposed to be listed may be present in the area of a proposed action".

This species list is provided by:

New York Ecological Services Field Office
3817 Luker Road
Cortland, NY 13045-9385
(607) 753-9334

PROJECT SUMMARY

Project Code: 2023-0095640
Project Name: Wallkill River NWR Trail Repairs
Project Type: Road Repair
Project Description: The Eastern Federal Lands Highway Division of the Federal Highway Administration (FHWA), in cooperation with the U.S. Fish and Wildlife Service (USFWS), are proposing to repair portions of the Winding Waters Trail and Liberty Loop Trail within the Wallkill River National Wildlife Refuge (Refuge) located off State Line Road in Warwick Township, Orange County, New York. The Refuge was impacted by back-to-back heavy rain events in late spring 2019, causing widespread flooding in the area. Multiple trails within the Refuge were inundated with flood waters for several days and portions of the Winding Waters Trail eroded into the Wallkill River.

Repairs on the Winding Waters Trail will include streambank stabilization along approximately 600 linear feet of the Wallkill River where portions of the Winding Waters Trail have eroded into the river. This work will involve installation of two segments of vegetated riprap revetment, rehabilitating and resurfacing impacted portions of the trail surface, slight realignment of the trail to accommodate installation of the revetments, and turf re-establishment. Repairs on the Liberty Loop Trail will involve deep patch repairs of trail side slopes, installation of a cellular confinement system, repair and rehabilitation of the trail surface, and turf re-establishment. All work would occur within areas previously disturbed by original construction of each trail or immediately adjacent to the existing trail at the Winding Waters trail site.

Project Location:

The approximate location of the project can be viewed in Google Maps: https://www.google.com/maps/@41.296135750000005,-74.52542087556746,14z



Counties: Orange County, New York

ENDANGERED SPECIES ACT SPECIES

There is a total of 6 threatened, endangered, or candidate species on this species list.

Species on this list should be considered in an effects analysis for your project and could include species that exist in another geographic area. For example, certain fish may appear on the species list because a project could affect downstream species.

IPaC does not display listed species or critical habitats under the sole jurisdiction of NOAA Fisheries[1], as USFWS does not have the authority to speak on behalf of NOAA and the Department of Commerce.

See the "Critical habitats" section below for those critical habitats that lie wholly or partially within your project area under this office's jurisdiction. Please contact the designated FWS office if you have questions.

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1. NOAA Fisheries, also known as the National Marine Fisheries Service (NMFS), is an office of the National Oceanic and Atmospheric Administration within the Department of Commerce.

MAMMALS

NAME	STATUS
Indiana Bat *Myotis sodalis* There is **final** critical habitat for this species. Your location does not overlap the critical habitat. Species profile: https://ecos.fws.gov/ecp/species/5949	Endangered
Northern Long-eared Bat *Myotis septentrionalis* No critical habitat has been designated for this species. Species profile: https://ecos.fws.gov/ecp/species/9045	Endangered
Tricolored Bat *Perimyotis subflavus* No critical habitat has been designated for this species. Species profile: https://ecos.fws.gov/ecp/species/10515	Proposed Endangered

REPTILES

NAME	STATUS
Bog Turtle *Glyptemys muhlenbergii* Population: Wherever found, except GA, NC, SC, TN, VA No critical habitat has been designated for this species. Species profile: https://ecos.fws.gov/ecp/species/6962	Threatened

INSECTS

NAME	STATUS
Monarch Butterfly *Danaus plexippus* There is **proposed** critical habitat for this species. Your location does not overlap the critical habitat. Species profile: https://ecos.fws.gov/ecp/species/9743	Proposed Threatened

FLOWERING PLANTS

NAME	STATUS
Small Whorled Pogonia *Isotria medeoloides* Population: No critical habitat has been designated for this species. Species profile: https://ecos.fws.gov/ecp/species/1890	Threatened

CRITICAL HABITATS

THERE ARE NO CRITICAL HABITATS WITHIN YOUR PROJECT AREA UNDER THIS OFFICE'S JURISDICTION.

YOU ARE STILL REQUIRED TO DETERMINE IF YOUR PROJECT(S) MAY HAVE EFFECTS ON ALL ABOVE LISTED SPECIES.

IPAC USER CONTACT INFORMATION

Agency: Department of Transportation
Name: Kim Campo-Allen
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City: Ashburn
State: VA
Zip: 20147
Email kim.campo-allen@dot.gov
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Section 106 NHPA Documentation

New York State
Parks, Recreation and
Historic Preservation

KATHY HOCHUL
Governor

ERIK KULLESEID
Commissioner

June 01, 2023

Kim Campo-Allen
Eastern Federal Lands, Highway Division, Federal Highway Administration
22001 Loudoun County Parkway
Building E-2, Suite 200
Ashburn, VA 20147

Re: FHWA
Wallkill River National Wildlife Refuge Trail Repairs
169 Oil City Rd, Pine Island, NY 10969
23PR04373

Dear Kim Campo-Allen:

Thank you for requesting the comments of the State Historic Preservation Office (SHPO). We have reviewed the project in accordance with Section 106 of the National Historic Preservation Act of 1966. These comments are those of the SHPO and relate only to Historic/Cultural resources. They do not include potential environmental impacts to New York State Parkland that may be involved in or near your project. Such impacts must be considered as part of the environmental review of the project pursuant to the National Environmental Policy Act and/or the State Environmental Quality Review Act (New York Environmental Conservation Law Article 8).

Based upon this review, it is the opinion of the New York SHPO that no historic properties, including archaeological and/or historic resources, will be affected by this undertaking.

If further correspondence is required regarding this project, please be sure to refer to the OPRHP Project Review (PR) number noted above.

Sincerely,

R. Daniel Mackay

Deputy State Historic Preservation Officer
Division for Historic Preservation

rev: B. Russell